Prompt:
Compare the reporting obligation under EMIR and FinfraG Art. 104 for an OTC interest rate swap between a Swiss bank and an EU non-financial counterparty below the clearing threshold, and tell me whether one platform can serve both.

I'll start with the skill that covers exactly this kind of cross-regime question.
Ran 2 commands, used 2 tools
The routing here is unambiguous (EMIR Art. 9 ↔ FMIA Art. 104).
Let me verify the decisive points rather than assert them.
Browsed the web
The FMIA PDF downloaded — let me extract the actual article text rather than rely on secondary summaries.
Ran 5 commands, browsed the web

First, the fact that decides this
The answer turns on which entity books the Swiss bank's side. I've assumed the trade is booked in the Swiss legal entity (registered office in Switzerland, no EU establishment on the trade). If it's actually booked into an EU subsidiary of the group, the analysis inverts — that subsidiary is an EU FC, EMIR Art. 9(1a) mandatory delegation makes it report *both* sides, and FinfraG drops out entirely because there is no Swiss counterparty. Flag that before anyone builds to this.
Everything below assumes the Swiss-booked case.

Who reports — the two regimes catch different parties
FinfraG Art. 104 → the Swiss bank reports. FMIA Art. 93(1) scopes the chapter to counterparties "which have their registered office in Switzerland," so the duty attaches to the bank, not the EU NFC. Art. 104(2)(a) then allocates it: "in the case of transactions between a financial and a non-financial counterparty: the financial counterparty." Single-sided, no pairing, T+1 under Art. 105(1) — at the latest the working day after conclusion, amendment or termination.
EMIR Art. 9 → the EU NFC- reports its own side. This is the counter-intuitive half. The REFIT rule that makes an FC "solely responsible and legally liable" for its NFC- client's reporting applies only to EU FCs. A Swiss bank is a third-country entity with no EMIR reporting duty of its own, so the mandatory delegation never engages.
The NFC- can escape only through the third-country relief in Art. 9(1a), which requires that the third-country entity would qualify as an FC if EU-established and that it reported to a TR "subject to a legally binding and enforceable obligation to grant the entities referred to in Article 81(3) direct and immediate access to the data." EMIR 3.0 deleted the old Art. 13 equivalence condition — the ESMA consolidated text now runs (a) then (c), with the gap where (b) was — but replaced it with that access condition. As far as I can establish, no EU arrangement granting Art. 81(3) access to a non-EU trade repository currently exists for any jurisdiction, Switzerland included. That makes the relief a dead letter in practice. Verify it against ESMA before relying on it either way, but plan on the NFC- reporting itself.
Net: two reports, from two different entities, to two different regimes. Neither discharges the other. There is no "report once" outcome here.

	FinfraG Art. 104	*EMIR Art. 9*
Reporting party	Swiss bank	EU NFC- (itself)
Model	Single-sided, statutory cascade	Dual-sided in principle; only the EU leg is caught here
Legal liability	Swiss bank	EU NFC-
Deadline	T+1 (Art. 105(1))	T+1
Recipient	FINMA-authorised or recognised TR	EU-registered TR
Reconciliation / pairing	None	Yes — pairing and matching
Delegation	Permitted, Art. 104(5) ("Third parties may be involved")	Permitted; liability stays with the NFC-

Can one platform serve both — yes, and there's a shortcut

One platform is workable, and this pairing is unusually friendly to it because REGIS-TR is both FINMA-recognised for FinfraG and EU-registered under EMIR. One TR connection can absorb both filings. SIX Trade Repository is the Swiss-domiciled alternative but Swiss-only.

What genuinely shares across the two:

- Trade capture, lifecycle event detection, valuation and collateral data
- UTI generation and exchange — the same UTI should carry both reports, and this is the highest-value shared component
- LEI and counterparty static data, product/UPI reference data
- Submission, acknowledgement and exception handling; the control and attestation framework

What has to be localised, and shouldn't be papered over:

- Reporting-party determination. EMIR delegation logic and the FinfraG Art. 104(2) cascade are different rule engines, not one engine with a jurisdiction flag. The Art. 104(2)(c) backstop — the Swiss party reports "if the foreign counterparty does not report" — has no EMIR analogue and needs its own state tracking.
- Counterparty categorisation. Swiss FC/NFC plus the Art. 99 "small" test, assessed for foreign counterparties as if they were Swiss, against EMIR's FC/NFC and clearing-threshold logic. Different tests, different thresholds.
- Field mapping and format. EMIR REFIT is ISO 20022 XML on a fully harmonised ~200-field schema; FMIA Art. 105(2) sets a much thinner statutory minimum with the detail pushed into FinfraV.
- Reconciliation. EMIR only. Building it once and switching it off for Switzerland is fine; building Swiss reporting *as if* it reconciled wastes effort.
- Error correction regimes, retention, and regulator engagement.

The realistic shape is a common data and UTI layer with two jurisdiction-specific rule engines and mapping layers on top — roughly the model the established vendors sell. The trap is treating FinfraG as "EMIR with fewer fields." The reporting-party logic is where that assumption breaks, and it breaks silently.

On the pipeline: this question routes cleanly to `sme-emir` + `sme-fmia-art-104`, then comparison → convergence → output-quality. That's two SME agents plus three downstream stages, and I haven't launched it — spawning agents isn't something I do without you asking. Say the word if you want the full sourced run with finding IDs and a manifest under `.reg-analysis/`; the above is my own analysis against the primary texts.

Sources:
FMIA/FinfraG consolidated text (Fedlex) · ESMA Interactive Single Rulebook, EMIR Art. 9 · Regulation (EU) 2024/2987 (EMIR 3) · FINMA: authorisation of SIX TR and recognition of REGIS-TR · Clifford Chance, EMIR 3.0 briefing